

23AHCV01193 23AHCV01193

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-10
Motion: MOTION FOR RECONSIDERATION
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C08%2F10%2F2026
Source SHA-256: 30e5198ddd1a12c2ef1b5e6ee15e5f66f35cebdbc1ca00c375cf843e66b5a097

Case Number: 23AHCV01193 Hearing Date: August 10, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

SUMAYYA
AASI, et al.,

Plaintiff(s),

vs.

AMERICAN
HONDA MOTOR CO., INC., et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23AHCv01193

[TENTATIVE]

ORDER RE: MOTION FOR RECONSIDERATION

Dept.

3

8:30

a.m.

August

10, 2026

)

Defendant American Honda Motor Co.,
Inc. ("Defendant") moves for an order granting reconsideration of the Court's
order on June 25, 2026 ("June 25, 2026 Order"), which granted plaintiffs
Sumayya Aasi and Ahuma Aasi (collectively, "Plaintiffs") motion to compel the
deposition of Defendant's employees.

The June 25, 2026 Order directed Defendant
to produce Kevin Hawkins, Joseph Russell, Benjamin Losey, and Adam Ritter for
deposition. Defendant argues that reconsideration is warranted because neither
Kevin Hawkins nor Benjamin Losey are Defendant's employees, therefore it cannot
be compelled to produce them for deposition. Defendant states that Kevin

Hawkins left AHM's employ in December 2025, and Benjamin Losey left AHM's employ in April 2025. (See Declaration of Steffie Patz, at ¶¶ 4-5.) These facts were not presented to the Court earlier because Defendant did not anticipate that the Court would reject defense counsel's declaration and defense counsel "could not readily obtain employment 'evidence' from [Defendant]." (Motion, Tuhlbarg Decl, ¶ 6.)

Plaintiffs Sumayya Aasi and Ahuma Aasi (collectively, "Plaintiffs") filed a limited opposition on July 28, 2026. Plaintiffs do not oppose the motion with respect to Kevin Hawkins and Benjamin Losey, but point out that the moving papers make no mention of Joseph Russell or Adam Ritter, despite including them in the motion's notice. Plaintiffs also point out that during efforts to meet and confer in December 2025, Plaintiff's counsel explained in an email that an attorney declaration based on "information and belief" that the individuals were not employees would not sufficient. Plaintiff's counsel asked for a signed declaration confirming whether individuals were employees along with a basis for such "information and belief", but defense counsel never responded to the email. (Opp., Lupinek Decl., ¶ 3.)

Defendant's proffered grounds are insufficient for a motion for reconsideration under Code of Civil Procedure section 1008(a) because the evidence regarding its former employees could have been obtained before the hearing. Nevertheless, the Court exercises its inherent power, as articulated in *Le Francois v. Goel* (2005) 35 Cal.th 1094, to reconsider its prior order on its own motion. The Court notes that Defendant did not file a reply brief to address Joseph Russell or Adam Ritter; therefore, the motion for reconsideration is GRANTED only in part and the Court reconsiders its June 25, 2026 Order as follows:

Plaintiffs' motion to compel is DENIED as to Kevin Hawkins and Benjamin Losey. Plaintiffs' motion to compel is GRANTED with respect to Adam Ritter and Joseph Russell and Defendant is ordered to produce them for deposition within 30 days. The Court imposes sanctions (the ones already imposed in the previous order--not new ones) on Defendant and counsel of record, jointly and severally, in the amount of \$1,740, payable within 30 days of the date of this Order.

Dated
this 10th

day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.